

TENTATIVE RULING

Lisa Clontz v. Mimi Park (25CV005153)

Judgment Creditor Lisa Clontz's Motion for Preliminary Injunction Restraining Transfer or Dissipation of Assets

By this motion, judgment creditor Lisa Clontz seeks a preliminary injunction preventing judgment debtor Mimi Park from transferring identified assets pending satisfaction of Ms. Clontz's \$40,000 judgment against Ms. Park. Ms. Park opposes the motion. No reply was filed.

The Motion is **DENIED**.

The Court is unaware of any authority providing for the relief requested by Ms. Clontz. The statutes cited by Ms. Clontz (Code of Civil Procedure sections 526, 527, and 708.420) are not applicable. Code of Civil Procedure section 526 and 527 apply to actions in which a complaint has been filed but no judgment is yet entered. In this case, judgement is already entered in Ms. Clontz's favor and Ms. Clontz can proceed with enforcement of that judgment under legally available means. Code of Civil Procedure section 708.420 applies to actions against third parties in possession of property in which the judgment debtor has an interest. (See Cal. Code Civ. Proc. § 708.210.) There is no such action here.

Because no authority allows for the relief requested, the Motion is denied.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.**

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.